

Act Relating to Children, 2018

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 28

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Children's Act, 2075".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Orphan child" means an orphan child as per the prevailing law.

(b) "Investigation Officer" means the officer authorized under the prevailing law to investigate an offence.

(c) "Offence" means a criminal offense under the prevailing law.

(d) "Child in conflict with law" means a child accused of an offence and the said term also includes children found guilty of an offence by a Juvenile Court.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(f) "Diversion" means the process of taking a child accused of an offence out of the formal judicial process by adopting any procedure mentioned in Section 29.

(g) "Observation Room" means an observation room established pursuant to Section 22.

(h) "Family" means the father, mother, siblings (brothers and sisters), grandfather or grandmother of the child living together as a joint family, and the said term also includes other close relatives living together as a joint family.

(i) "Council" means the National Child Rights Council pursuant to Section 59.

(j) "Child" means a person who has not completed eighteen years of age.

(k) "Violence against children" means an act pursuant to sub-section (2) of Section 66.

(l) "Juvenile Court" means a Juvenile Court constituted pursuant to sub-section (1) of Section 30, and the said term also includes the Juvenile Bench pursuant to sub-section (3) of the same Section.

(m) "Child pornography" means the act of taking or recording videos or photos by exposing the sexual organs of a child or involving them in simulated sexual activities, or displaying obscene pictures through newspapers, posters, prints, films or other media, and the said term also includes the act of producing, selling, distributing, importing, exporting, collecting or disseminating such materials.

(n) "Child Welfare Officer" means an officer appointed or designated pursuant to Section 61.

(o) "Children's Home" means a Children's Home established pursuant to Section 52.

(p) "Child sexual abuse" means an act pursuant to sub-section (3) of Section 66.

(q) "Correction Home" means a Correction Home established pursuant to Section 43.

(r) "Ministry" means the Ministry of Women, Children and Senior Citizens of the Government of Nepal.

(s) "Children in need of special protection" means children pursuant to Section 48.

(t) "Guardian" means a person or institution having the duty or appointed under this Act or the prevailing law to protect the rights and interests of a child, and the said term also includes the head of the family (m?thabar) in the absence of a guardian.

(u) "Social Worker" means a person pursuant to Section 62.

(v) "Local Level" means a Rural Municipality or Municipality.

Chapter-2

Rights of Children

3. Right to Life: (1) Every child shall have the right to live with dignity.

(2) The Government of Nepal, Provincial Government and Local Level shall adopt necessary measures for preventive and protective services, including the prevention of accidents and mitigation of risks that may occur to children, for the right to life and development of children.

4. Right to Name, Nationality and Identity: (1) Every child shall have the right to naming and birth registration along with their identity.

(2) After the birth of a child, the father or mother of the child shall name the child and register the birth pursuant to the prevailing law.

(3) If the mother of a child born from rape or incest which is punishable under the prevailing law so desires, birth registration shall be done by mentioning only the mother's name.

(4) While giving a name pursuant to sub-section (2), if the father or mother is not immediately available or there is no possibility of them being available, such child shall receive the name as given by other family members or the guardian who is caring for them.

(5) Every child shall be entitled to use the surname given by the consent of the father and mother after birth, or if such consent cannot be obtained, the father's surname, after their name.

(6) Notwithstanding anything contained in sub-section (5), a child may, if they so wish, use the surname of their father or mother or both.

(7) A child whose paternity is not established shall be entitled to use the mother's surname after their name.

(8) If a dispute arises regarding the surname of a child, it shall be deemed that the child uses the father's surname, unless proven otherwise.

(9) A child whose both father and mother are unknown shall be entitled to use the surname given by the guardian after their name.

(10) While giving a name and surname pursuant to sub-section (9), the guardian shall inform the Child Welfare Officer.

(11) If it is necessary to mention the names of the father, mother and grandparents in any formal legal work or document as per the law, a child whose father is not found may mention the name of the mother and the mother's father and mother; and if the mother's name is also not found, stating that fact shall suffice.

(12) The mother, father or guardian shall not change the name or surname of a child with the intention of hiding the child's identity for undue gain. 5.

Right Against Discrimination: (1) No child shall be discriminated against on any grounds based on the religion, color, caste, ethnicity, gender, origin, language, culture, ideological belief, physical or mental condition, disability, marital status, family status, profession, health status, economic or social status, geographical area or any other similar grounds of the child, their family, or guardian. (2) No one shall discriminate between sons and daughters, between sons, between sons and daughters, between daughters, or between children born from a previous spouse or a subsequent spouse in terms of their upbringing, education, or healthcare. (3) No one shall discriminate in any way between their own children and adopted children or children under their guardianship. (4) No discrimination shall be made in the upbringing, education, or healthcare of children born before a marital relationship between a man and a woman is established and after the marital relationship. 6. Right to Live with and Visit Parents: (1) No child shall be separated from their father or mother against their will. (2) Notwithstanding anything contained in sub-section (1), if necessary for the best interest of the child, the Juvenile Court may order a child to be separated from the father or mother and placed under the care of a guardian. Provided that before issuing such an order, the concerned party shall not be deprived of a reasonable opportunity to present their defense. (3) A child living separately from the father or mother or both shall have the right to maintain personal relations or regular direct contact or visits with the father and mother, except in cases where the Juvenile Court has prohibited such contact as being harmful to the child's interest. (4) A person adopting a child shall allow the child to meet, contact and correspond with their biological father and mother. (5) A person or institution providing alternative care shall allow the child under their care or protection to meet with their biological father, mother or family. 7. Right to Protection: (1) Every child shall have the right to receive proper care, protection, upbringing and affection from their father, mother, other family members or guardian. (2) The father and mother shall have equal responsibility regarding the care, protection and upbringing of their child.

In the event of divorce or separation for any other reason, the cost of raising the child shall be borne by both the father and mother according to their financial capacity. (3) No father, mother, other family members or guardian shall abandon or desert their child or a child under their guardianship. (4) Children with disabilities, conflict victims, displaced children, children at risk, or children living on the streets shall have the right to special protection as prescribed by the State for a secure future. (5) Every child shall have the right to protection from all forms of physical or mental violence and torture, neglect, inhuman treatment, discriminatory treatment based on gender or untouchability (chhut-chhut), sexual abuse and exploitation from their father, mother, other family members or guardian, teachers and other persons. (6) Every child shall have the right to protection from economic exploitation and shall have the right to be protected from any work that is harmful to them or likely to interfere with their education or harm their health, physical, mental, moral, social development. (7) No child shall be recruited into the army, police or armed groups and used directly or indirectly in armed conflict or for political purposes. (8) No one shall, under any pretext during armed conflict or any adverse situation, attack or obstruct the operation and management of places including schools, services or facilities intended for the welfare of children. (9) Children below fourteen years of age shall not be engaged in hazardous work or kept as domestic workers or kamalari (bonded laborer). (10) The Government of Nepal, Provincial Government and Local Level may adopt necessary measures and formulate and implement standards for the protection of children. 8. Right to Participation: Children capable of forming their own views shall have the right to participate in decisions made by the family, community, school or other public bodies or institutions on matters affecting them. 9. Right to Freedom of Expression and Information: (1) Every child shall have the right to freely express their opinion in accordance with the prevailing law. (2) Every

child shall have the right to demand and receive information on matters concerning their rights, interests and concerns, subject to the prevailing law. 10.

Right to Form Association and Peaceful Assembly: (1) Every child shall have the right to form a children's club or association or assemble peacefully for the protection and promotion of child rights. (2) The provisions relating to forming a children's club or association pursuant to sub-section (1) shall be as prescribed. 11.

Right to Privacy: (1) Every child shall have the right to privacy in matters relating to their body, residence, property, documents, data, correspondence and character. (2) No one shall create, collect, publish, print, display, sell, distribute or disseminate through any means any personal information, details, photos, videos that may harm the character of a child or cause them shame, guilt or contempt. (3) The name, surname, address, age, gender, family background, economic status, offence, and any proceedings related thereto, and other identifying details of a child accused of or victim of an offence, held by the Juvenile Court, Police Office, guardian, parent or other body, shall be kept confidential. The details of a child kept confidential in this manner shall not be used elsewhere except as per the law. Provided that, if publication is necessary for any study or research purpose, it may be done by mentioning only the age or gender without disclosing the name, surname, address and other identity of the child and their family. 12. **Special Rights of Children with Disabilities:** (1) Special protection shall be provided to children with disabilities as prescribed. (2) Every child with a disability shall have the right to ensure their dignity, promote self-reliance, actively participate in society and live with respect. (3) Children with disabilities shall have the right to receive special care and the opportunity for education, training, healthcare services, rehabilitation services, employment preparation and recreation for integration into society and their personal development. (4) Children with disabilities shall have the right to equal access to and enjoyment of public services and facilities. 13. **Right to Nutrition and Health:** (1) Every child shall have the right to adequate nutrition, clean drinking water, and children up to two years of age shall also have the right to breastfeeding. (2) Pregnant women and children shall have the right to receive necessary vaccinations to prevent diseases, access physical and mental health services in accordance with national standards, and receive age and maturity-appropriate information regarding the body, reproduction and reproductive health. (3) Every child shall have the right to receive basic health treatment free of cost. 14.

Right to Sports, Recreation and Culture: (1) Every child shall have the right to play games and participate in sports according to their age and interest. (2) Every school shall encourage children to participate in sports during non-teaching hours and shall arrange necessary appropriate sports grounds and sports materials for that purpose. (3) Every child shall have the right to child-friendly recreation according to their age, interest and needs. (4) Every child shall have the right to participate in cultural activities according to their religion, culture, customs, traditions and beliefs, as long as it is not detrimental to their interest. 15. **Right to Education:** (1) Children below six years of age shall have the right to learn appropriately according to their age and developmental level and the right to early childhood development. (2) Every child shall have the right to compulsory and free education up to the basic level and free education up to the secondary level in a child-friendly environment, in accordance with the prevailing law. (3) Every child shall have the right to receive education through appropriate study materials and teaching methods according to their specific physical and mental condition, in accordance with the prevailing law. (4) Dalit children shall have the right to free education including scholarships in accordance with the prevailing law. **Chapter-3 Responsibilities Towards Children** 16. **Best Interest of the Child to be Prioritized:** (1) Every official of bodies and institutions performing tasks related to children shall prioritize the best interest of the child in every action and adopt necessary child-friendly procedures. (2) It shall be the duty of everyone to provide immediate assistance to a child whose life is at risk. (3) While making arrangements for alternative care of a child, separating a child

from parents or guardian, or deciding who will care for and raise children upon the divorce of parents, the Child Welfare Officer or Juvenile Court under this Act shall adopt the highest interest determination process as prescribed. (4) Public and private social institutions where children reside or provide services to children shall make necessary arrangements to ensure that the construction or maintenance of physical structures is child-friendly. 17.

Duties of the Family or Guardian: (1) Both the father and mother shall have equal responsibility for the care, upbringing and development of the child. (2) It shall be the duty of every father, mother, other family members or guardian to care for, nurture and protect the child, provide opportunities for personality development including education and healthcare, provide a loving and affectionate environment, and provide appropriate guidance for a secure future. (3) The father, mother, other family members or guardian shall enroll every child of school-going age in school and provide a conducive environment for their education. (4) The father, mother, other family members or guardian shall not make the child work in a manner that affects their education, health or physical or mental development. (5) The father, mother, other family members or guardian shall not leave a child under six years of age alone at home or elsewhere, or send them elsewhere alone without the accompaniment of an adult. 18. Duty of the State: The State shall make necessary arrangements, based on available resources, for the basic needs including upbringing, protection, health and education of children in need of special protection. 19. Duties of the Communication Sector: It shall be the duty of the communication sector to publish or disseminate information in a manner that does not violate child rights or is detrimental to the welfare of children. Chapter-4 Related to Juvenile Justice 20. Matters to be Considered While Administering Juvenile Justice: In addition to matters mentioned elsewhere in this Act, the persons, officials and the Juvenile Court involved in administering juvenile justice shall consider the following matters in the course of dispensing justice:- (a) To understand the views of the child before making any decision affecting the child, (b) To give the father, mother, other family members or guardian an opportunity to present their views before making a decision on any matter involving the interest and welfare of the child, (c) To use language, words and behavior appropriate to the age, intellectual development level, beliefs and cultural values of the child, (d) To communicate with the child in the language desired by them and, if necessary, take the help of an interpreter. 21. Taking a Child into Control: (1) Upon receiving information of an offence, the Investigation Officer shall commence investigation into the offence as soon as possible.

While conducting such investigation, if it appears necessary to take the child accused of the offence into control for investigation, the Investigation Officer may take such child into control. (2) If it is not deemed necessary to keep a child taken into control under sub-section (1) in custody, the child shall be handed over to a family member, guardian or close relative. (3) If a child is taken into control under sub-section (1), the Investigation Officer shall inform a family member, guardian or close relative of the child about this. (4) While taking a child into control under sub-section (1), the Investigation Officer shall not use force. Provided that there shall be no bar to using the minimum force necessary to take the child into control. (5) A child taken into control under sub-section (1) shall, if possible, be put in touch with a person working in child psychology or child welfare and provided necessary counseling services. (6) If a child taken into control under sub-section (1) can themselves be diverted under Section 27, the Investigation Officer may, notwithstanding anything contained in the prevailing law, record the statement of such child themselves. (7) A child taken into control under sub-section (1) may be kept in an Observation Room for up to twenty-one days at a stretch not exceeding five days at a time with the permission of the Juvenile Court. (8) Notwithstanding anything contained in sub-section (7), if the Juvenile Court, considering the physical condition, age, circumstances of committing the offence or the condition of the Observation Room, feels it is not appropriate to keep the child accused of an offence in the Observation Room, the Juvenile Court may order the child to be handed over to

the father, mother, other family members or guardian, or in their absence, to a social organization or Correction Home involved in protecting the rights and interests of the child, on the condition of presenting the child when required, for the investigation of the case. (9) While interrogating a child taken into control, the Investigation Officer shall do so in a child-friendly environment in the presence of the child's father, mother or guardian or the Child Welfare Officer or a legal practitioner. 22.

Provision Relating to Establishment of Observation Room: (1) The Government of Nepal may establish Observation Rooms for the purpose of keeping children taken into control on charges of an offence during the investigation period. (2) Until Observation Rooms are established pursuant to sub-section (1), a separate room shall be arranged in each District Police Office. (3) Children taken into control for investigation shall be provided with necessary psychological counseling and psychosocial support. (4) If a family member of a child kept in an Observation Room wishes to stay with them for their support, the Investigation Officer may permit them to stay together, setting the time and conditions as necessary. (5) Other provisions relating to the establishment, operation, management and monitoring of Observation Rooms shall be as prescribed. 23.

Special Provisions Relating to Investigation and Prosecution: (1) Notwithstanding anything contained in the prevailing law, the Government of Nepal shall constitute a separate unit to investigate offences accused against children. (2) Until a separate unit is constituted pursuant to sub-section (1), the Government of Nepal may designate employees working in the District Police Office who have received training on juvenile justice to perform that work. 24. Provisions Relating to Remand: (1) No child shall be detained in custody or required to furnish bail or security during the course of the trial of a case. (2) Notwithstanding anything contained in sub-section (1), in the following circumstances, the Juvenile Court may, stating reasons, order a child accused of an offence to be kept in a Correction Home for remand:- (a) If there are sufficient grounds that the child's life or body is at risk, or that the child may cause harm to someone, or that such child may abscond, or for any other reason it is not appropriate to keep the child elsewhere, (b) If a child accused of an offence punishable with imprisonment of three years or more appears guilty from the immediate available evidence, or there are reasonable grounds to believe they are the offender. (3) Except in the circumstance of sub-section (2), other children accused of an offence may be handed over to the father, mother, other family member or guardian, and in their absence, to an institution or person protecting the rights and interests of the child, on the condition of producing them when required.

Provided that, if the Juvenile Court, considering the physical and mental condition, age, circumstances of committing the offence of a child falling under the circumstances of sub-section (2), feels it is not appropriate to keep them in a Correction Home, there shall be no bar to handing them over to the father, mother, other family member or guardian, and in their absence, to an institution or person protecting the rights and interests of the child under this sub-section, upon setting conditions.

(4) While handing over a child pursuant to sub-section (3), the person taking the child and the child shall be informed about the prescribed conditions and the consequences of non-compliance.

(5) If a child handed over to someone pursuant to sub-section (3) fails to comply with the conditions set by the Juvenile Court, the child may be kept in a Correction Home for the trial of the case. 25. Rights of the Victim Child: A victim child shall have the right to child-friendly justice as follows at every stage of the investigation, prosecution and judicial process:-

- (a) To receive information in a language they understand,
- (b) To participate or be involved,

(c) To have personal identifying details kept confidential,

(d) To receive reasonable compensation from the offender,

Provided that this clause shall not be deemed to limit the victim's opportunity to receive compensation from the State.

(e) To receive free legal assistance and, if necessary, psychosocial counseling services, and to be able to retain a separate legal practitioner if desired,

(f) To have the facility of a free interpreter, sign language expert or translation if the language used by the investigating body or Juvenile Court is not understood by the victim,

(g) To receive free copies of documents including decisions and orders made by the investigating body or Juvenile Court,

(h) To receive police protection to be safe from harm from the offender or on their behalf,

(i) To have their case heard in camera,

(j) To be able to make the presence of the accused indirect during proceedings if necessary. 26.

Rights Available to Children in the Course of Hearing: (1) In addition to the rights mentioned elsewhere in the prevailing law and this Act, a child shall have the following rights in the course of investigation and hearing of a case:- (a) To receive information about the accusation against them, the proceedings thereon, and the order or decision made therein, directly or through the family or guardian, (b) To receive immediate free legal assistance and other necessary support for the defense against the accusation against them, (c) To have the case processed, heard and adjudicated by a competent judicial body, (d) To request the presence of the family or guardian as necessary in all processes of juvenile justice administration, (e) To receive speedy and impartial justice from the Juvenile Court, (f) To receive confidentiality in the process of juvenile justice administration, (g) To receive information about constitutional or legal rights, (h) To have the investigation, prosecution and hearing conducted in a child-friendly environment, Explanation: For the purpose of this clause, "child-friendly environment" means behavior suitable to the age, maturity and psychology of the child. This includes, among other things, the use of language the child understands, creation of a non-threatening environment, presence of mother, father or other family member or guardian, addressing the individual needs of the child, and availability of a facilitator as needed. (i) To participate in every stage of the judicial process and have the opportunity to freely express their views, (j) To have the child's father, mother, guardian participate alongside them in the hearing of the case if the child so desires, (k) If the father, mother, guardian or parent of the victim child themselves is the offender, the child may, if they wish, stay away from the offender. (2) A child accused of an offence shall be presumed innocent until adjudged otherwise by the Juvenile Court, and such child shall not be compelled to be a witness against themselves. 27.

Power to Divert: (1) Notwithstanding anything contained in the prevailing law, if diversion appears reasonable for the best interest of the child, the following authorities may decide to divert a child accused of an offence in the following circumstances:- (a) By the Investigation Officer, in cases where the amount involved is up to five thousand rupees, or the fine is up to two thousand rupees, or imprisonment is up to one month, (b) By the Government Attorney, in cases where the amount involved is up to ten thousand rupees, or the fine is up to five thousand rupees, or imprisonment is up to three years, (c) By the Juvenile Court, in cases involving any amount or any fine or imprisonment. (2) Notwithstanding anything contained in clause (c) of sub-section (1), a child shall not be diverted in cases punishable with imprisonment of three years or more. (3) If dissatisfied

with the diversion order, the child or guardian may file a petition in the Juvenile Court in the case of clauses (a) and (b) of sub-section (1), and in the High Court in the case of clause (c). 28. Matters to be Considered While Diverting: The following matters shall be considered while diverting:- (a) That the child has admitted to committing the offence, (b) The consent of the concerned child, their father, mother, and if no parents, other family members or guardian, (c) That the consent of the victim party has been obtained in a manner ensuring their rehabilitation as far as possible, (d) The nature of the offence and the circumstances of its commission, the severity of the incident, the age, maturity and intellectual level of the child, family environment, and the harm caused to the victim and their rehabilitation shall be taken as a basis. 29.

Procedure to be Adopted for Diversion: (1) While diverting, considering the wishes of the child as well, one or more appropriate procedures as follows shall be adopted:- (a) To bring about conciliation or agreement between the child and the victim, (b) To make the child realize their mistake, (c) To provide necessary counseling to the child and their family, (d) To send the child for some community service, (e) To send the child to an institution for care and protection, (f) To release the child under the supervision and direction of the Child Welfare Officer, (g) To entrust the child to the father, mother, other family member or guardian, (h) To involve the child in some training or educational program. (2) While diverting by adopting any procedure pursuant to clauses (d), (e), (f), (g) and (h) of sub-section (1), a period shall also be specified. (3) While diverting by adopting the procedure pursuant to clauses (d), (e) and (f) of sub-section (1), the diversion period shall not exceed the maximum penalty that could be imposed on the child for the offence. (4) Before diverting a child, the Investigation Officer or Government Attorney shall have a child psychologist and child specialist study and analyze the physical and mental condition of the child, and a social worker study and analyze the economic, cultural condition and background of the child, and obtain a report. (5) The Investigation Officer, Government Attorney or Juvenile Court, upon diverting a child under sub-section (1), shall inform their superior body and the Juvenile Court. (6) If a child accused of an offence is diverted, such dispute shall end, and the formal judicial process shall be deemed concluded. (7) The Investigation Officer, Government Attorney or Juvenile Court diverting a child shall make arrangements to monitor, through a Probation Officer, whether the diverted child is continuously participating in the diversion process. (8) While diverting a child, the following may be done in compensation for the harm or loss caused to the victim:- (a) To compensate the victim or make good the actual harm or loss, (b) To return the property, profit or material obtained from the offence to the relevant owner. (9) Other provisions relating to diversion shall be as prescribed. 30.

Constitution of Juvenile Court: (1) The Government of Nepal may, on the recommendation of the Judicial Council, constitute Juvenile Courts in the required number for the initial proceedings, hearing and adjudication of offences committed by children. (2) Notice of the constitution of a Juvenile Court under sub-section (1) shall be published in the Nepal Gazette, and the territorial jurisdiction and seat of such court shall be as specified in that notice. (3) Until a Juvenile Court is constituted under sub-section (1), a Juvenile Bench shall be constituted in each District Court for the proceedings, hearing and adjudication of offences to be heard by the Juvenile Court. (4) The Juvenile Bench pursuant to sub-section (3) shall consist of the following members:- (a) District Judge, (b) Social Worker, (c) Child Psychologist or Child Specialist. (5) The qualifications, appointment, remuneration and other terms of service of the Social Worker, Child Psychologist or Child Specialist pursuant to clauses (b) and (c) of sub-section (4) shall be as prescribed. (6) Notwithstanding anything contained in sub-section (1), if an adult person is involved together with a child in any offence, the case of the child shall be processed, heard and adjudicated by the Juvenile Court, and a separate file shall be created for the adult person and the case shall be processed, heard and adjudicated according to the prevailing law. 31. Exercise of Jurisdiction of Juvenile Court: The exercise of the jurisdiction of the Juvenile Court shall be as prescribed. 32. Proceedings by Juvenile Court Only: Even if the child attains

the age of eighteen years during the course of the proceedings of the case, such case shall be processed, heard and adjudicated by the Juvenile Court itself. 33. Transfer of Cases to Juvenile Court: Cases pending initial proceedings in a District Court or other body under the prevailing law against a child for an offence before the commencement of this Act shall be transferred to the relevant Juvenile Court after the commencement of this Act. 34. Provisions Relating to Hearing: (1) The Juvenile Court shall conduct the hearing of the case in a child-friendly environment, considering the age and maturity of the child. (2) While conducting the hearing of the case, the Juvenile Court shall ensure the participation of the child and provide them with an opportunity to freely express their views. 35.

36. Provisions Relating to Punishment: (1) If the age of a child at the time of committing the offence is less than ten years, no case shall be filed against them and no punishment shall be imposed on them.

(2) If a child aged ten years or above but less than fourteen years commits an offence punishable with a fine, they shall be released with a warning; if they commit an offence punishable with imprisonment, they may, depending on the nature of the offence, be sentenced to imprisonment for up to six months or be kept in a Correction Home for a maximum of one year without imprisonment.

(3) If a child aged fourteen years or above but less than sixteen years commits any offence, they shall be liable to half the punishment that would be imposed on an adult person under the law.

(4) If a child aged sixteen years or above but less than eighteen years commits any offence, they shall be liable to two-thirds of the punishment that would be imposed on an adult person under the law.

(5) The Juvenile Court, considering the age, gender, maturity, nature of the offence and the circumstances of its commission of a child found liable to punishment under sub-section (2), (3) or (4), may suspend the sentence with or without conditions, or make any appropriate decision as follows as a form of punishment:-

- (a) To have a family member or guardian counsel and educate the child regarding good human conduct,
- (b) To have the child oriented by a service-providing institution or person,
- (c) To provide individual, group or family psychosocial counseling services,
- (d) To have the child stay with a family member, guardian, school, service-providing person or institution for a specified period under their supervision, complying with set conditions,
- (e) To send the child for community service suitable to their age, specifying the nature and duration of service,
- (f) To place the child in a Correction Home for a period not exceeding the sentence imposed on them.

(6) If a person causes a child to commit an offence by teaching, pressuring, ordering, enticing or in any manner whatsoever, the person teaching, pressuring, ordering, enticing or causing such act shall be punished under the law as if they themselves had committed the offence.

(7) Notwithstanding anything contained elsewhere in this Section, while sentencing a child who has not completed sixteen years of age, a sentence of imprisonment shall not be imposed except for heinous offences, serious offences or habitual offending. 37.

Period for Case Adjudication: Notwithstanding anything contained in the prevailing law, the Juvenile Court shall generally adjudicate the case within one hundred and twenty days from the date of filing, and the proceedings and adjudication of such cases shall be conducted on the basis of continuous hearing. 38.

Power to Reduce or Remit Correction Period: (1) If there is satisfactory improvement in the behavior of a child staying in a Correction Home, an institution or under the protection or supervision of a person pursuant to the decision of the Juvenile Court, the Child Welfare Officer may recommend to the Juvenile Court to reduce or remit the correction period of such child. (2) If, upon examining the recommendation received under sub-section (1), it appears reasonable to reduce or remit the correction period, the Juvenile Court may reduce or remit the remaining correction period of the child. 39. Restorative Justice: (1) Juvenile justice administration shall be carried out in a manner conducive to the principles of restorative justice. (2) Other provisions relating to restorative justice shall be as prescribed. 40. Not Deemed Disqualified: Notwithstanding anything contained in the prevailing law, if a person would otherwise be disqualified under the law from holding any position or receiving any benefit due to committing an offence, they shall not be deemed disqualified from holding that position or receiving that benefit based on an offence committed during their childhood. 41. Previous Conviction Not Counted: (1) Notwithstanding anything contained in the prevailing law, for the purpose of determining habitual offending under this Act or the prevailing law, an offence committed during minority shall not be counted. (2) Notwithstanding anything contained in the prevailing law, even if a child commits an offence repeatedly, no additional punishment shall be imposed on them based on such repetition. 42. Not to Apply Fetters, Handcuffs or Keep in Solitary Confinement: Notwithstanding anything contained in the prevailing law, no child in conflict with law shall be put in fetters or handcuffs, or kept in solitary confinement, detention or imprisonment. 43.

Provisions Relating to Correction Home: (1) The Government of Nepal shall establish Correction Homes as necessary for the purpose of keeping children in conflict with law until their reformation and rehabilitation. (2) For the purpose of sub-section (1), an institution may, with approval from the Government of Nepal, establish a Correction Home. (3) The Juvenile Court may monitor and inspect Correction Homes established within its territorial jurisdiction, give necessary directions to such Correction Homes, and require them to submit reports regarding the reformation status of children in the Correction Home. (4) If a child in a Correction Home attains the (6) If the Child Welfare Officer, pursuant to sub-section (5), finds it necessary to provide any assistance for entrusting the child to his/her father, mother, other family member, or guardian, the Officer shall coordinate with the concerned body and arrange for necessary services such as sponsorship or family support. Explanation: For the purpose of this section,- (a) "Sponsorship" shall be understood as the act of providing financial assistance, either long-term or short-term, by any person, association, organization, or body for the necessary sustenance and education of a child. (b) "Family support" shall be understood as assistance provided to identify and resolve the economic and social causes leading to family disintegration, thereby maintaining family unity and harmony, and creating an environment within the relevant family that ensures the protection of the child. (7) If, during the inquiry and investigation pursuant to sub-section (3), it appears that alternative care is necessary, the Child Welfare Officer shall make arrangements for alternative care. (8) In a case where a child is a victim, if the victim child so wishes, or if the father, mother, or guardian is the perpetrator, or if there is a possibility of the child being at further risk due to collusion with the perpetrator, or if it appears that the inquiry, action, and truth-finding of the incident would be hindered, the Child Welfare Officer shall make arrangements to separate such victim child even from the father, mother, or family for a certain period and place the child under temporary protection services. (9) If, during the inquiry and investigation pursuant to sub-section (3), the paternity and maternity of the child cannot be traced, the Child Welfare Officer shall recommend the child for a birth registration and a government identity card that reveals the child's identity. 51.

To Appoint or Designate a Guardian: While providing alternative care services pursuant to section 49, arrangements for care shall be made by appointing or designating a guardian in accordance with the

prevailing law. 52. Establishment and Operation of a Child Home: (1) For the purpose of protecting children in need of special protection, the Government of Nepal, the Provincial Government, or the Local Level shall establish Child Homes as necessary. (2) Provisions relating to the establishment of a Child Home, qualifications of the operator, operating permit, renewal, classification, management, operational standards, and monitoring shall be as prescribed. 53. Duration of Stay in a Child Home: A child in need of special protection shall be kept in a Child Home until appropriate restoration of such child is achieved or until such child reaches the age of eighteen years. 54. Reunification to be Arranged: (1) If the father, mother, or guardian of a child residing in a Child Home is found and if it is in the best interest of the child, family reunification shall be arranged as prescribed. (2) After the commencement of this Act, children shall not be placed in a Child Home except pursuant to sections 49 and 69. 55. Duty Regarding Restoration and Social Reintegration: The concerned Child Home or Child Correction Home shall have the duty to assist the Child Welfare Officer in restoring and socially reintegrating children residing in the Child Home or Child Correction Home. 56. Head of Institution to be Responsible: (1) If any institution has been given the responsibility of guardianship pursuant to this Chapter, the head of such institution shall be considered ultimately responsible for the care and upbringing of the child. Explanation: For the purpose of this section, "Head of Institution" shall be understood as the Chief Executive Officer of such institution, or the Chairperson, Managing Director, or any other official designated according to the rules of the institution who acts in that capacity. (2) If an institution entrusted with guardianship acts contrary to the prescribed conditions and procedures, the Child Welfare Officer may prohibit such institution from carrying out child protection work, specifying the condition that has been violated. (3) If monitoring confirms that an institution prohibited under sub-section (2) has made the expected improvements, the Child Welfare Officer may revoke the prohibition imposed on such institution regarding child protection work. 57.

Child Protection Standard: (1) Schools, every public body working directly with children, as well as private sector and social organizations, shall develop and implement a Child Protection Standard at the institutional level to prevent violence against children or child sexual abuse, ensure the protection of children, and ensure immediate action on complaints. (2) It shall be the duty of the head of the school, every public body, private sector, and social organization to implement the Child Protection Standard developed pursuant to sub-section (1). 58. Monitoring and Reporting: (1) A person, guardian, or institution entrusted with the care and upbringing of a child pursuant to this Act shall submit details concerning the child through the concerned Child Welfare Officer to the Local Child Rights Committee within three months of the end of each fiscal year. (2) Based on the details received pursuant to sub-section (1), the Local Child Rights Committee shall prepare a report and submit it annually to the Provincial Level Child Rights Committee and the Local Level Child Rights Committee. (3) The Provincial Child Rights Committee shall periodically inspect and monitor the overall situation of children within the province and the quality and effectiveness of available services, and the Local Child Rights Committee shall do likewise within the local level. Chapter-6 Institutional Arrangements Relating to Child Rights and Child Welfare 59. National Child Rights Council: (1) For the protection and promotion of the rights and interests of children, there shall be a National Child Rights Council, as prescribed, chaired by the Minister for Women, Children, and Senior Citizens of the Government of Nepal. (2) Provisions relating to the meetings, functions, duties, and powers of the Council shall be as prescribed. 60. Provincial and Local Level Child Rights Committee: (1) In each Province, there shall be a Provincial Child Rights Committee chaired by the Minister looking after children's affairs of the Province. (2) In each Local Level, there shall be a Local Child Rights Committee chaired by a member of such Village Executive or Municipal Executive designated by the Vice-Chairperson or Deputy Chief of the Village Executive or Municipal Executive. (3) The number of members of the Provincial Child Rights Committee and Local Child Rights Committee pursuant to

sub-sections (1) and (2), and the functions, duties, powers, and procedures of meetings of such committees shall be as determined by the Province and Local Level. 61.

Child Welfare Officer: (1) For the respect, protection, and promotion of the rights of children, and also to carry out child protection work, there shall be one Child Welfare Officer at the Local Level. (2) The appointment, functions, duties, and powers, as well as terms of service and other arrangements of the Child Welfare Officer pursuant to sub-section (1), shall be as prescribed. 62. Social Worker and Child Psychologist: (1) A person wishing to work as a Social Worker or Child Psychologist shall register their name with the Local Child Rights Committee as prescribed. (2) From among the Social Workers and Child Psychologists listed pursuant to sub-section (1), the required number of Social Workers and Child Psychologists may be appointed at the Local Level to carry out child protection work and provide services. (3) Social Workers and Child Psychologists appointed pursuant to sub-section (2) shall work under the direct direction and supervision of the Child Welfare Officer. (4) Social Workers and Child Psychologists required by the Child Court shall be appointed from among the Social Workers and Child Psychologists listed pursuant to sub-section (1). (5) The appointment procedure, qualifications, functions, duties, and powers, as well as terms of service and other arrangements of Social Workers and Child Psychologists, shall be as prescribed. 63. Child Fund: (1) There shall be a Child Fund for the purpose of immediate rescue, relief, restoration of children, as well as providing compensation. (2) The Fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, Provincial Government, and Local Level, (b) Amounts received from foreign governments, international organizations, or persons, (c) Amounts received from domestic persons, associations, or organizations, (d) Amounts received from fines imposed by the Child Court, (e) Amounts received from any other source. (3) Before receiving amounts pursuant to clause (b) of sub-section (2), the consent of the Ministry of Finance, Government of Nepal, must be obtained. (4) The amount of the Fund pursuant to sub-section (1) may also be made available to any Child Fund established under the laws of the Province or Local Level. (5) Provisions relating to the management, operation, and use of the Fund pursuant to sub-section (1) shall be as prescribed. Chapter-7 Protection and Enforcement of the Rights of Children and Duties towards Them 64.

Local Level to Enforce Rights of Children: (1) If anyone violates the rights of a child pursuant to Chapter 2 or fails to fulfill duties towards a child pursuant to Chapter 3, the concerned child or stakeholder may submit an application to the Judicial Committee of the Local Level where the child resides for the enforcement of such right or fulfillment of the duty. (2) Upon receiving an application pursuant to sub-section (1), the Judicial Committee shall summon the concerned person and conduct necessary inquiries within twenty-four hours, excluding travel time. (3) If, upon inquiry pursuant to sub-section (2), it does not appear that the concerned person has violated the rights of the child or failed to fulfill duties towards the child, the Judicial Committee shall, within thirty days of the application being filed, order the concerned person, institution, or body at the Local Level to enforce the child's rights or fulfill duties towards the child. (4) If, upon inquiry pursuant to sub-section (2), the matter of enforcing the child's rights or fulfilling duties towards the child does not appear to fall within its jurisdiction, the Judicial Committee shall refer the matter in writing to the Judicial Committee of the other concerned Local Level for the enforcement of child rights or fulfillment of duties towards the child. (5) Upon receiving a written communication pursuant to sub-section (4), the Judicial Committee of the concerned Local Level shall also arrange for the enforcement of the child's rights or fulfillment of duties towards the child as per sub-section (3). (6) While enforcing the rights of a child or fulfillment of duties towards a child pursuant to this section, the Judicial Committee may provide necessary suggestions to the child, guardian, or family members, or caution the guardian or family members. 65.

To Enforce the Rights of Children: (1) Notwithstanding anything contained in section 64, if anyone violates the rights of a child pursuant to Chapter 2 or fails to fulfill duties towards a child pursuant to Chapter 3, the concerned child or stakeholder may directly submit an application to the concerned High Court for the enforcement of such right or fulfillment of the duty. (2) Upon receiving an application pursuant to sub-section (1), the High Court shall conduct necessary inquiries in this regard and may issue appropriate orders in the name of the concerned person, institution, or body to enforce the child's rights or fulfill duties towards the child. (3) If, during the inquiry of an application received pursuant to sub-section (1), it does not appear that the guardian or any family member has violated the child's rights or failed to fulfill duties towards the child, the High Court shall provide necessary information to such guardian or family member regarding the child's rights and require them to express a commitment not to violate the child's rights in the future or to fulfill duties towards the child. (4) While issuing an order pursuant to sub-section (2), the High Court may caution the person, head of institution, or body that violates a child's rights or fails to fulfill duties towards a child, or punish them according to this Act, and order compensation from them. Chapter-8 Offences Against Children 66.

Offence Against Children: (1) If anyone commits any act amounting to violence as per sub-section (2) or sexual abuse as per sub-section (3), it shall be considered an offence against children under this Act. (2) If anyone commits any of the following acts against a child, it shall be considered violence against a child: (a) Involving in addictions such as smoking, alcohol consumption, gambling, or playing cards, (b) Causing entry or use of entertainment venues opened for adults, such as dance bars, casinos, (c) Showing films, other audio-visual materials designated for adults, (d) Inflicting physical or mental punishment or behaving indecently at home, school, or any place, (e) Causing physical injury or harm, terrorizing or threatening, insulting, neglecting, discriminating, boycotting, or hating, isolating, or inflicting mental pain, (f) Harassing or tormenting using electronic or other means, (g) Organizing for political purposes or using in strikes, bandhs, blockades, sit-ins, or rallies, (h) Unlawful imprisonment, custody, incarceration, or detention, applying fetters or handcuffs, (i) Treating cruelly, inhumanely, or torturing, (j) Causing to beg or to assume the guise of a hermit, monk, fakir, or any other, except for eternal traditions, customs, or any religious or cultural act, (k) Forcibly declaring an orphan or registering as an orphan, (l) Offering or dedicating to anyone's name due to vows, religious, or any other intention, or committing any kind of violence, discrimination, contempt, or boycott in the name of tradition, culture, rites, or making a subject of ridicule, (m) Putting in magic or circus, (n) Teaching, training, or involving in criminal acts, (o) Arranging a child's marriage or marrying or causing to marry a child, (p) Removing a child's organ contrary to prevailing law, (q) Using a child for drug testing or any other testing, (r) Placing in a Child Home except according to law. (3) If anyone commits any of the following acts against a child, it shall be considered child sexual abuse: (a) Showing or causing to show obscene pictures, audio-visuals, or other similar materials, or displaying expressions or gestures reflecting obscene and sexual conduct or behavior, or displaying or causing to display child pornography, (b) Distributing, storing, or using real or simulated obscene pictures or audio-visual materials of a child, (c) Proposing, persuading, pressuring, or threatening for sexual activities, (d) Using in the production of obscene acts and materials, (e) Touching, kissing, holding, hugging sensitive body parts with sexual intent, or causing or making oneself or another touch or hold sensitive body parts, or rendering unconscious with sexual intent, or displaying or causing to display sexual organs, (f) Using or causing to use a child to generate lust or sexual arousal, (g) Using or causing to use a child to obtain sexual satisfaction, (h) Committing or causing to commit child sexual exploitation, (i) Using or causing to use a child for the purpose of providing sexual services, (j) Using or causing to use a child for the purpose of sexual abuse, (k) Using in prostitution or other sexual acts. (4) Notwithstanding anything contained in sub-section (3), expressing anything through writing, speech,

gesture, or display about words, pictures, audio, visual means, objects, or materials related to sexual matters in a manner that does not reveal obscenity for the purpose of providing information and education, or acts done in good faith in the course of providing healthcare or protecting a child from accident or risk for the child's welfare, shall not be considered as having committed sexual abuse.

67. Not Deemed Qualified: (1) If a person working in a public or private institution is found to have committed an offence against children, such person shall be dismissed according to prevailing law and, based on the severity and nature of the offence, shall not be deemed qualified for work requiring direct contact with children in the future or for appointment, nomination, or election to such private association or organization for up to ten years.

(2) A person found guilty of child sexual abuse under this Act or prevailing law shall be deemed to have committed a criminal offence involving moral turpitude. 68. Information to be Given: (1) If a father, mother, guardian, caregiver providing direct services to children, teacher, health worker, or anyone else comes to know that violence or child sexual abuse has happened, is happening, or is about to happen to any child, they shall immediately inform the nearest police office.

(2) The concerned police office receiving information under sub-section (1) shall immediately provide it to the Child Welfare Officer and may seek necessary assistance.

(3) When information is given with the intention of protecting a child, the person providing the information shall not be subject to any legal action solely on the basis of having given the information.

(4) The identity of the person providing information under sub-section (1) shall be kept confidential if they so wish. 69. Temporary Protection Service: The Government of Nepal shall arrange a Temporary Protection Service to provide safe accommodation for children found to require immediate rescue and protection. 70. Rescue, Protection, and Health Examination to be Done: (1) Upon receiving information, complaint, or notice of violence against a child or child sexual abuse, a police employee shall record necessary details, register them, rescue the child immediately if rescue is needed, and send the victim child to the Temporary Protection Service.

(2) If the victim child appears to be in physical or mental pain, the police employee shall immediately send the child to the nearest hospital or health center for treatment and arrange for health examination and treatment of the child.

(3) When recording the statement of a victim child, if the child's father, mother, other family members, or guardian can be present, the statement shall be taken in their presence, and if they cannot be present, in the presence of a female representative of a social organization or a social worker. Provided that when recording a statement in a case where the father, mother, guardian, or other family members have committed violence against the child or child sexual abuse, they shall not be made present. 71.

Chapter-9

Punishment, Compensation, and Authority to Hear Cases

72. Punishment: (1) If any person, institution, or body violates the rights of a child mentioned in Chapter 2 or fails to fulfill the duties towards a child mentioned in Chapter 3, such person or the head of such institution or body shall be liable to a fine of up to fifty thousand rupees.

(2) If a guardian or any family member fails to fulfill their duty, or if a mother, father, or guardian changes the

name or surname of a child with the intention of hiding the child's identity for undue benefit, or misuses the child's property, such mother, father, family member, or guardian shall be liable to a fine of up to one hundred thousand rupees.

(3) If anyone commits an offence against children, the punishment shall be as follows according to the gravity of the offence:

(a) For committing any act pursuant to clauses (a), (b), (c), (d), (e), (f), or (r) of sub-section (2) of section 66 or sub-section (1) or (2) of section 78, a fine of up to fifty thousand rupees and imprisonment of up to one year,

(b) For committing any act pursuant to clauses (g), (h), (i), (k), (l), (o), or (q) of sub-section (2) of section 66 or clauses (a), (b), (c), (e), (f), or (h) of sub-section (3), a fine of up to seventy-five thousand rupees and imprisonment of up to three years,

(c) For committing any act pursuant to clause (d) of sub-section (3) of section 66, a fine of up to eighty thousand rupees and imprisonment of up to four years,

(d) For committing any act pursuant to clause (j) or (m) of sub-section (2) of section 66, a fine of up to one hundred thousand rupees and imprisonment of up to five years,

(e) For committing any act pursuant to clause (n) of sub-section (2) of section 66, half the punishment that would be given to the offender for the criminal act taught or trained,

(f) For committing any act pursuant to clause (p) of sub-section (2) of section 66, a fine of up to five hundred thousand rupees and imprisonment of up to ten years,

(g) For committing any act pursuant to clause (g) or (j) of sub-section (3) of section 66, the punishment prescribed for the offence of rape under prevailing law,

(h) For committing any act pursuant to clause (i) or (k) of sub-section (3) of section 66, a fine of up to one hundred fifty thousand rupees and imprisonment of up to fifteen years.

(4) A person who abets, attempts, or is an abettor in committing the acts mentioned in sub-sections (1), (2), and (3), shall be liable to half the fine and imprisonment prescribed for the principal offender.

(5) If anyone does any other act contrary to this Act or the rules made under this Act, except as provided in this section, such person shall, according to the gravity of the offence, be liable to a fine of up to fifty thousand rupees or imprisonment of up to one year or both.

(6) If a person who has received punishment once under this Act commits such act again, such person shall be liable to an additional punishment of twenty-five percent of the punishment prescribed under this section.

(7) Notwithstanding anything contained elsewhere in this section, if an act under sub-section (3) is also considered an offence under other prevailing law, the provisions of this section shall not create any hindrance to initiating a separate case and punishing according to that law, and if a person is liable to a greater punishment under prevailing law for an act contrary to this Act than specified in this section, punishment shall be accordingly.

(8) If anyone establishes or operates a Child Home, Child Correction Home, Observation Room, Rehabilitation Centre, or Temporary Protection Service Centre without obtaining approval under this Act, the Ministry may close down such Child Home, Child Correction Home, Observation Room, Rehabilitation Centre, or Temporary Protection Service Centre and impose a fine of up to one hundred thousand rupees on the involved person and institution, and may take further other actions according to prevailing law.

73. Compensation: (1) The Child Court shall, considering the education, physical and mental health,

development of the victim child, and the harm caused to the family, order the offender, in a lump sum or periodically, to pay reasonable compensation, not less than the amount of the fine imposed on the offender for the offence against children under prevailing law and this Act.

(2) If the fine amount cannot be recovered from the offender under sub-section (1), or even if such amount is recovered, it seems low or insufficient compared to the offence against the child, the Child Court shall arrange for the payment of reasonable compensation to such child from the Child Fund pursuant to section 63.

(3) If the victim child dies before receiving the compensation amount under sub-section (1), such amount shall be given to the child's father, mother, or if they are not alive, to another family member or guardian.

(4) If a victim child of an offence against children under prevailing law requires immediate treatment, or if compensation or any kind of relief amount needs to be provided, interim compensation shall be provided according to prevailing law. 74. Statute of Limitations: (1) In relation to offences under section 66, if a statute of limitations is prescribed in prevailing law, the case must be filed within such limitation period, and if no limitation is prescribed, within one year from the date of commission of such offence.

(2) In case a case is not filed pursuant to sub-section (1), notwithstanding anything contained in prevailing law, the statute of limitations for filing a case concerning an offence against children shall remain effective for up to one year from the date such child attains the age of eighteen years. 75. Authority to Hear Cases: Except for sub-section (8) of section 72, the Child Court shall have the authority to conduct initial proceedings and adjudicate cases punishable under other sub-sections of that section. 76. Government of Nepal to be Plaintiff: The case under section 66 shall be initiated by the Government of Nepal as plaintiff, and such case shall be deemed to be included in Schedule-1 of the The Muluki Criminal Procedure Code, 2074, as amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075, further amended by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074. Muluki Criminal Procedure Code, 2074. Chapter-10

Miscellaneous

77. Duties of Children: It shall be the duty of every child to follow the advice, suggestions, guidance, and directions given by the father, mother, guardian, other family members, teachers, and social workers, considering the best interest of the child, and to respect and honor everyone. 78.

Confidentiality to be Maintained: (1) No one shall publish or broadcast by any print or electronic means any details that would reveal the identity of a child related to a case pending in the Child Court. (2) No one shall transmit any information or news through any communication medium in a manner that reveals the identity of a child victimized by an offence against children. (3) The police, government attorney, or Child Court shall make arrangements for maintaining records without revealing the actual name and identity of a child victimized by an offence against children. (4) The investigation officer, government attorney, and Child Court shall keep confidential the identity of a child accused of a criminal act. Copies of documents related to such accusation shall not be provided to anyone other than the concerned police and government attorney's office, the Child Court, the concerned child, their family members, guardian, concerned legal practitioner, and the Central and District Child Justice Committees. (5) Notwithstanding anything contained elsewhere in this section, details concerning a child may be published or broadcast in the following circumstances as follows: (a) For publishing or broadcasting any details concerning a child involved in a legal dispute, if it is not against the interest of such child, such details with the permission of the Child Court, (b) For the publication of statistics concerning children involved in a legal dispute for any study or research purpose, with the

permission of the concerned body, based on age or gender without mentioning the child's name, surname, personal details, and address. 79. Provision Regarding Probation Officer: (1) The Government of Nepal shall appoint one Probation Officer in each district to work in close contact with a child accused of a criminal act, to investigate the case related to the child, inspect the Observation Room, prepare reports on the status of implementation of orders of the Child Court, and carry out other related functions. (2) Until a Probation Officer is appointed pursuant to sub-section (1), the Government of Nepal may designate any officer of the Government of Nepal to function as a Probation Officer. (3) The functions, duties, and powers of the Probation Officer, as well as terms of service and other arrangements, shall be as prescribed. 80.

Case Proceedings and Adjudication Not to Proceed Without Legal Practitioner: (1) Notwithstanding anything contained in prevailing law, the Child Court shall not conduct proceedings and adjudicate a case on a criminal charge brought against any child until a legal practitioner is appointed to defend the child. (2) In case a legal practitioner is not appointed on behalf of a child accused of a criminal act, the concerned Child Court shall make arrangements to provide the services of a remunerated legal practitioner or any other willing legal practitioner. 81. Appeal: (1) If a party is dissatisfied with a decision of the Child Court or a decision made by the Ministry pursuant to sub-section (8) of section 72, an appeal may be filed in the concerned High Court within thirty-five days of such decision. (2) Notwithstanding anything contained in sub-section (1) and prevailing law, no appeal shall lie against a judgment of acquittal passed by the Child Court in favor of a child, except in cases where there is an error in the interpretation of law, misuse of precedent, or failure to consider evidence that should have been considered or consideration of inadmissible evidence, resulting in a miscarriage of justice. 82. Priority to be Given in Case Proceedings: Priority shall be given to the proceedings, hearing, and adjudication of cases filed in courts other than the Child Court where a child is either the plaintiff or the defendant. 83. Basis for Determining Age of a Child: In determining the age of a child, the following matters shall be considered as the basis: (a) The date of birth mentioned in the birth certificate of the child issued by a hospital, (b) If there is no date of birth as per clause (a), the date of birth mentioned in the birth registration certificate issued by the office of the Local Registrar, (c) If there is no certificate as per clause (b), the date of birth mentioned in the school character certificate or the date of birth stated at the time of enrollment in school, (d) If there is no certificate or date of birth as per clause (c), the date mentioned in the age certificate certified by a hospital, (e) If there is no certificate as per clause (d), the horoscope, natal chart, notes, the age disclosed by the child's father, mother, guardian, or other family members, or other similar relevant evidence. 84. Matters to be Governed by This Act: Matters written in this Act shall be according to this Act, and other matters shall be according to prevailing law. 85. Power to Make Rules: The Government of Nepal may make necessary rules to implement the objectives of this Act.